

Limited Source Justification

“Source Selection Information – see FAR 2.101 and 3.104”

1. Identification of the agency and contracting activity.

a. Federal agency and contracting activity.

Department of Health and Human Services (HHS)
National Institutes of Health (NIH)

b. Sponsoring organization.

National Library of Medicine (NLM)
Office of Computer and Communications Systems (OCCS)

c. Project Officer information.

[REDACTED]
8600 Rockville Pike,
Bethesda, MD 20892
[REDACTED]

2. Nature and/or description of the action being approved.

a. Acquisition purpose and objectives.

The National Library of Medicine (NLM), one of the 27 institutes, centers, and offices that form the National Institutes of Health (NIH) in Bethesda, Maryland, has been a center of information innovation since its founding in 1836. The Office of Computer and Communications Systems (OCCS) operates the NLM Data Center, the network backbone, and core infrastructure to support the several divisions and functions of the Library. OCCS responsibilities include: (a) to design, develop, implement and manage automated systems for the collection, storage, retrieval, analysis and dissemination of information in support of the NLM mission, particularly on medical terminologies, data standards, and consumer health; (b) manage the NLM Data Center (Tier 2 Green) and support the transition to cloud-based solutions, (c) design, manage and secure the NLM’s internet backbone and internet connectivity, and (d) provide operational support for electronic and information technology (EIT) use across the NLM in coordination with the business, IT and IT Security functions across the National Institutes of Health.

The NLM envisions a future in which data and information transform and accelerate biomedical discovery and improve health and health care. Achieving this vision will require the NLM to focus and enhance its research, development, training, and information services to make more biomedical data findable, accessible, interoperable, and reusable (the FAIR principles), to invent the tools and services to turn data and

information into knowledge and insight, and to develop the workforce capable of doing so. It will require new forms of partnership and engagement with stakeholders in the public and private sectors, including researchers, librarians, health professionals, entrepreneurs and innovators, underserved communities, and the public.

The purpose of this requirement is to acquire complex Information Technology (IT) services to support the OCCS in the development, programming, and maintenance of the OCCS projects and initiatives. The objective of this requirement is to acquire software development, system and database administration, application security and network security, subject matter expertise, and other related continuing and recurring complex IT support services. Contractor support is required for the continued growth and evolution of the OCCS activities in application development, medical vocabularies control processing, information systems, infrastructure support, security, and information dissemination.

b. Project background.

The Office of Computer and Communications Systems (OCCS) provides efficient, cost-effective computing and networking services, application development, technical advice, and collaboration in informational sciences to support the NLM's research and management programs. The OCCS develops and provides the NLM backbone computer networking facilities and assists other NLM components in local area networking. The organization provides professional programming services, and computational and data processing to meet the NLM program needs; operates and maintains the NLM Computer Center; develops software; and provides extensive customer support, training courses, and documentation for computer and network users.

Previous contractual history includes two competed task order awards, and a 6-month bridge. Contract/task order: GS06F0723Z / HHSN276201600140U was competed through GSA 8(a) STARS II and awarded to Software Consultants, Inc. with a base year and 2 option years (9/20/2016 – 9/19/2019) totaling \$9,016,658.21. The services included software application development and tooling support for the NLM.

Then, contract/task order: GS06F0723Z / 75N97019F00157, was competed through GSA 8(a) STARS II and awarded to Software Consultants, Inc. The award consisted of a base year and four option years (9/20/2019 – 9/19/2024) for a total amount of \$32,152,156.34. The services included software development, automation, and maintenance to support health care biomedical vocabularies, and standards for the NLM.

The NLM Office of Acquisitions received a Government Accountability Office (GAO) pre-award protest on August 28, 2024, which halted the re-compete procurement process. Based on the NIH's proposed corrective

action, the protest was dismissed on September 11, 2024. Specifically, the NIH advised that it cancel the solicitation and coordinate with the Small Business Administration (SBA) regarding its requirements and will reissue the solicitation based on the SBA's determination. The NIH also advised that it may correct any additional errors or deficiencies, if any, in the procurement process/record that are discovered during the agency's implementation of the corrective action. As a result, the Request for Quote (RFQ) was canceled. Due to the nature of the protest and the corrective actions necessary, along with the end of the U.S. General Services Administration (GSA) 8(a) STARS II vehicle, there was not sufficient time to address all corrective actions, coordinate with the SBA, and go through the competition process before the end of the prior task order performance period.

The current 6-month bridge award was issued to Software Consultants, Inc. via GSA Multiple Award Schedule (MAS) contract 47QTCA23D00BQ, task order number 75N97024F00088 after the GSA 8(a) STARS II contract vehicle ended to allow services to continue until the corrective actions were taken. The task order period of performance and amount are as follows:

Period	Period of Performance	Amount
Base	9/20/2024 – 3/19/2025	\$3,942,876.16

The NLM completed all corrective action steps necessary and appropriate coordination and communication with the SBA, the NIH Small Business Program Office (SBPO), and the HHS Office of Small and Disadvantaged Business Utilization (OSDBU) occurred. Based on guidance received from the SBA, NIH SBPO, and the HHS OSDBU, the NLM completed a Determination of New Requirement determination and findings. The HHS OSDBU gave concurrence to proceed with the NLM determination on December 6, 2024, and on December 20, 2024, the SBA stated that it considered the requirement to be a new contract, and release from the 8(a) program was not required.

A RFQ set aside for all small businesses was released on January 16, 2025, under the GSA MAS with a quote due date of February 6, 2025. The vendor that previously filed a GAO protest submitted a Bid Protest Pre-Filing Notice on February 4, 2025, and subsequently filed a Bid Protest Complaint with the Court of Federal Claims on February 6, 2025, challenging the NLM's decision to remove the solicitation from the 8(a) program as well as the SBA's concurrence with the removal of the requirement. Consequently, the acquisition process for these essential contract services is on hold.

The NLM's information systems are designed for uninterrupted access by the biomedical community, relying on essential contract services to ensure

efficient software development, system stability, high-performance operations, seamless maintenance, rapid issue resolution, and robust cybersecurity, including swift vulnerability mitigation. To maintain the stability, security, and continuity of critical NLM systems, a bridge contract is necessary to support system management, rapid issue resolution, cybersecurity protection, threat monitoring and detection, vulnerability mitigation, performance optimization, and continuous monitoring.

A bridge contract will ensure uninterrupted continuity of essential operations and security of critical NLM systems and prevent disruptions that impact human safety and healthcare. The bridge contract includes Cloud Architecture, DevOps Software development, Digital Data Analysis, etc. services to the NLM business and if this bridge contract cannot be issued, several risks and potential downtimes could arise. Some NLM applications might experience disruptions in critical IT services, leading to operational inefficiencies and delays. Key system maintenance, security updates, or troubleshooting tasks could be postponed, increasing vulnerability to cyber threats and system failures. Additionally, projects reliant on cloud architects could stall, negatively affecting productivity and timelines. Prolonged downtime might also lead to financial losses, reputational damage, and a decreased ability to meet users' and public service expectations. Moreover, the lack of critical IT support could impede the OCCS's capacity to implement new technologies or adapt to evolving digital needs, further exacerbating the risks.

3. Description of the supplies or services required to meet the agency's needs (including the estimated value).

a. Project title. Software Development, Automation, and Maintenance to Support Health Care, Biomedical Vocabularies, and Standards for the National Library of Medicine's (NLM) Office of Computer and Communications Systems (OCCS)

b. Project description. See attached Statement of Work (Attachment 1).

- **Requirement type.**

- ☐ Support services (non-research & development)
- ☐ Supplies/equipment
- ☒ Information technology (IT)
- ☐ Other (specify): _____

- **Type of action.**

- ☐ New requirement
- ☒ Follow-on
- ☐ Other (specify): _____

- **Proposed contract/order type.**

- ☐ Firm-fixed-price
- ☒ Labor-Hour
- ☐ Indefinite delivery (specify whether indefinite quantity, definite quantity, or requirements): _____
- ☐ Other (specify): _____

- **Acquisition identification number.**

47QTCA23D00BQ / 75N97025F00033

c. Total estimated dollar value and performance/delivery period.

Period	Period of Performance	Amount
Base	3/20/2025 – 9/19/2025	\$2,757,203.90
Option Period 1	9/20/2025 – 12/19/2025	\$1,388,673.39
Option Period 2	12/20/2025 – 3/19/2026	\$1,388,673.39
Option Period 3	3/20/2026 – 6/19/2026	\$1,415,996.58
Total All Periods		\$6,950,547.27

4. Identification of the justification rationale [see 8.405-6(a) and (b)] and, if applicable, a demonstration of the proposed contractor's unique qualifications to provide the required supply or service.

a. Acquisition authority.

- ☒ **This acquisition is conducted under the authority of the Multiple Award Schedule Program. Consideration of schedule contractors will be restricted to fewer than the number required by Federal Acquisition Regulation (FAR) 8.405-6(a)(1) (i.e., fewer than three FSS contractors).**

(A) An urgent and compelling need exists, and following the procedures would result in unacceptable delays;

- ☐ **This acquisition is conducted under the authority of the Multiple Award Schedule Program. Consideration of schedule contractors will be restricted only to the item peculiar to one manufacturer as provided in FAR 8.405-6(a)(2).**

b. Demonstration of the proposed contractor(s) unique qualifications to provide the required supply or service.

- **Name and address of the proposed contractor(s).**

Software Consultants, Inc.
8245 Boone Boulevard Suite 630
Vienna, VA 22182-3894

- **Nature of the acquisition and proposed contractor(s) unique qualifications.**

Software Consultants, Inc., (SCI) is uniquely positioned to deliver contract services through its cadre of highly qualified and experienced personnel, particularly in critical roles like Software Developers and Cloud Architects. The complexity and criticality of the NLM's projects demand a level of specialized expertise that SCI demonstrably possesses. The current Cloud Architect brings a extensive hands-on experience in architecting highly available fault-tolerant systems on Amazon Web Services (AWS), mastering cutting-edge technologies such as serverless computing, microservices, and infrastructure as code. This expertise is not theoretical knowledge; but instead, it is battle-tested experience, evident in the swift resolution of numerous longstanding NLM cloud issues and the proactive defense against escalating Distributed Denial-of-Service (DDoS) threats. Replacing this architect, in such a short period of time, would introduce a dangerous learning curve, jeopardizing system availability and potentially delaying critical security responses.

Similarly, SCI's Software Developers are not merely coders, but domain experts deeply versed in the intricate landscape of medical terminology and healthcare standards (Systematized Nomenclature of Medicine Clinical Terms (SNOMED CT), Fast Healthcare Interoperability Resources (FHIR), etc.). This specialized knowledge is essential for the NLM's work with agencies such as the Centers for Medicare & Medicaid Services (CMS) and the Office of the National Coordinator for Health Information Technology (ONC), where accuracy and compliance are paramount. The inherent risks of errors – misinterpretations, data mapping failures, and regulatory breaches – are exponentially amplified without this expertise. SCI's developers have cultivated years of focused experience on the NLM's specific terminology-related tasks, achieving a level of proficiency that cannot be replicated quickly. Introducing new developers would inevitably lead to costly delays, particularly given the tight deadlines imposed by the CMS, and significantly increase the risk of errors that could directly impact the quality and reliability of healthcare reporting and outcomes. SCI delivers not only technical skills and expertise, but also a strategic advantage built on deep domain knowledge and proven experience, ensuring that the NLM's projects are executed with unparalleled efficiency and precision.

The period of performance of a six-month base plus three, three-month option periods for a bridge is necessary to allow time for a court decision and complete the process for a new competition.

Based on the prior history of the current bridge, the time constraints significantly impacted the procurement timeline. Given the current protest process could take up to 12 months, an additional 3 months would be necessary to be able to complete the new competition process.

5. Determination by the ordering activity Contracting Officer that the order represents the best value consistent with FAR 8.404(d).

GSA has already determined the prices of supplies and fixed-price services, and rates for services offered at hourly rates under schedule contracts to be fair and reasonable. In accordance with the requirement for the ordering agency to determine that the order represents the best value (as defined in FAR 2.101) and results in the lowest overall cost alternative (considering price, special features, administrative costs, etc.) to meet the Government's needs, the Contracting Officer reviewed the quoted price and historical pricing to determine that the price represents the best value to the Government.

6. Description of the market research conducted among schedule holders and the results, or a statement of the reasons market research was not conducted.

Prior to the release of the canceled and closed Request for Quotes, two separate market research actions were performed. The Contracting Officer's Representative posted a Sources Sought SS-117482-SB, with a draft of the Statement of Work (SOW) (**Attachment 1**) for market research under the NIH Information Technology Acquisition and Assessment Center (NITAAC)'s Chief Information Officer – Solutions and Partners 3 (CIO-SP3) Small Business (SB) on June 13, 2024. It reached 159 small business companies. On June 18, 2024, the Contract Specialist coordinated with GSA utilizing the Market Research As a Service (MRAS) for 5 days to solicit feedback. One hundred and six (106) capability statements were received. Based on the market research results, considering historical sourcing for this acquisition type, and other vendors currently providing similar services to other offices and divisions within the organization it was determined that potential sources included small businesses under the GSA Multiple Award Schedule (MAS). Seven small businesses and one 8(a) small business were deemed to have complete capability to address the subject requirement.

Given programmatic knowledge of the marketplace, no other vendor could take on the bridge given the time constraints and the impact of additional delays. As a result, only the incumbent, SCI, was contacted for the bridge award due to its unique qualifications and ability to meet the urgent and compelling need for continued services. This bridge contract ensures there will be no interruption in critical services until the court decision and the procurement process are finalized and allows sufficient time for proper coordination and competition.

7. Any other facts supporting the justification.

Since the protest with the Court of Federal Claims, a competition for the procurement of these services cannot take place yet. As these are essential services, the Department of Justice recommended awarding a bridge contract for purposes of maintaining the “status quo”.

Given the time constraints related to the protest, it is impossible to solicit, evaluate and make a competitive award without a break in critical services. Any other vendor, other than the incumbent, SCI, would face significant challenges in providing skilled, qualified, and experienced personnel to adequately perform the software development, operations, maintenance, and other continuing services. Following standard procedures would lead to unacceptable delays and a service disruption, posing operational risks to NLM as detailed in section 2b.

8. Statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made.

a. Removal of barriers to competition.

The NLM is currently working with the Office of the General Counsel (OGC) and the Department of Justice on the protest case and plans to complete the requirement as a set aside based on prior market research results and SBA concurrence. It is anticipated that the six-month base plus three, three-month option periods for a bridge should be sufficient to allow time for a court decision and complete the process for a new competition, as the contracting office plans to use a GSA vehicle, which can assist in streamlining the procurement process. The specific vehicle used will be confirmed after the protest decision is made.

b. Listing of sources, if any, that expressed an interest, in writing, in the acquisition.

As stated in paragraph 6, there were interested small businesses that responded to the market research conducted. Seven small businesses and one 8(a) small business were deemed to have complete capability to address the subject requirement. Please see the attached list of sources that expressed interest (**Attachment 2**). Although the agency is awarding a bridge to the incumbent on a limited sources basis, the solicitation under the protest will be competed.

9. **Program office certification.** This is to certify that the portions of this justification that have been developed by the undersigned program office personnel, including supporting information and/or data verifying the Government's minimum needs or requirements, or other rationale for limited sources, are accurate and complete.

Official	Name & Title	Signature	Date
Project Officer			
Head of the Sponsoring Program Office			

10. **Contracting Officer certification.** This is to certify that the justification for the proposed acquisition has been reviewed and that to the best of my knowledge and belief the information and/or data provided to support the rationale and recommendation for approval is accurate and complete.

Official	Name & Title	Signature	Date
Contracting Officer			

11. Chief of the Contracting Office and Head of the Contracting Activity signature(s).

Official	Name & Title	Signature	Date
Chief of the Contracting Office			
Head of the Contracting Activity			

12. Competition Advocate signature.

Official	Name & Title	Signature	Date
Competition Advocate			

14. ATTACHMENTS:

- 1. Statement of Work**
- 2. List of Interested Sources**